

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabelle James	Team: Squad #09	CCRB Case #: 201708496	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 10/15/2017 4:15 PM	Location of Incident: in front of Erik's Barbershop	18 Mo. SOL 4/15/2019	Precinct: 34
Date/Time CV Reported Mon, 10/16/2017 12:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/16/2017 12:11 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Quinones	29678	953282	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Tiffany Sanchez	21647	959966	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Quinones	Discourtesy: Police Officer Michael Quinones spoke discourteously to § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On October 16, 2017, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On October 15, 2017, at approximately 4:15 p.m., § 87(2)(b) was inside of Erik's Barbershop, located at 609 west 207th Street in Manhattan, when he heard a police siren. § 87(2)(b)'s fiancée, § 87(2)(b) was seated in the passenger seat of § 87(2)(b)'s Toyota Camry double parked outside of the barbershop. § 87(2)(b) went outside and saw a marked police SUV parked behind his car, and two officers, identified as Police Officer Michael Quinones and Police Officer Tiffany Sanchez of the 34th Precinct, approaching his car. As soon as he saw § 87(2)(b) PO Quinones allegedly said, "Don't move the fucking car. Leave it right there" (**Allegation A**). § 87(2)(b) replied to PO Quinones, "Sir, is there any need for the vulgar language?" PO Quinones allegedly replied, "You know that the problem is with guys like you? You come out here disrespecting me with your fucking capes on and think you can park anywhere" (**Allegation A continued**).

PO Quinones then allegedly said, "Can't you fucking see that this street is narrow? What are you, fucking blind" (**Allegation A continued**)? PO Quinones then walked around the front of § 87(2)(b)'s vehicle to the front passenger window where § 87(2)(b) was standing to show § 87(2)(b) how little room there was between § 87(2)(b)'s double-parked car and the parked cars across the street. § 87(2)(b) told PO Quinones to write him the ticket and PO Quinones allegedly replied, "Yeah that's right. I'm going to write the fucking ticket" (**Allegation A continued**). § 87(2)(b) then went back into the barbershop to finish getting his hair cut. PO Quinones allegedly used the word "fuck" at least five times when speaking with § 87(2)(b).

§ 87(2)(b) was summonsed for double parking as a result of this incident.

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- During his interview at the CCRB, § 87(2)(b) rejected mediation. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- On November 14, 2017, a Freedom of Information Law request was made of the New York City Comptroller's Office for any Notice of Claim filed in regard to this incident (**Board Review 1**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has two prior CCRB complaints (**Board Review 3**). § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b)

- PO Quinones has been a member of the NYPD for five years and has 16 prior allegations pleaded against him involving seven cases, none of which were substantiated. PO Quinones has four prior discourtesy allegations that were closed as either unsubstantiated, complainant uncooperative, or exonerated.

Findings and Recommendations

Allegation A – Discourtesy: Police Officer Michael Quinones spoke discourteously to

§ 87(2)(b)

On October 15, 2017, at approximately 4:15 p.m., § 87(2)(b) was inside of Erik's Barbershop getting a haircut. His fiancée, § 87(2)(b) was seated in § 87(2)(b)'s car, which was double parked outside the barbershop. § 87(2)(b) heard a police siren and exited the shop. He saw PO Quinones and PO Sanchez exiting a marked police SUV and approaching his car. Immediately, PO Quinones allegedly said to § 87(2)(b) "Don't move the fucking car. Leave it right there." He then said, "You know that the problem is with guys like you? You come out here disrespecting me with your fucking capes on and think you can park anywhere."

As PO Quinones was walking around § 87(2)(b)'s car to show § 87(2)(b) how the car was blocking traffic, PO Quinones allegedly said, "Can't you fucking see that this street is narrow? What are you, fucking blind?" § 87(2)(b) told PO Quinones to write him the ticket and PO Quinones allegedly replied, "Yeah that's right. I'm going to write the fucking ticket." § 87(2)(b) then went back into the barbershop to finish getting his hair cut. PO Quinones allegedly used the word "fuck" at least five times when speaking with § 87(2)(b).

Although § 87(2)(b)'s fiancée, § 87(2)(b) and § 87(2)(b)'s barber, § 87(2)(b) were present for parts of this incident, both § 87(2)(b) and § 87(2)(b) acknowledged that they did not witness the entirety of this incident. § 87(2)(b) who was seated in § 87(2)(b)'s car during the conversation between § 87(2)(b) and PO Quinones, stated that her window was cracked and she could only hear parts of the conversation. § 87(2)(b) stated that he came out of the barbershop when he heard PO Quinones' raised voice. However, as soon as he realized that PO Quinones was going to write § 87(2)(b) a summons, § 87(2)(b) went back inside.

PO Quinones testified that he saw § 87(2)(b)'s double parked-car and turned on his lights and siren to give him the opportunity to move his car. When no one came out to move the car after approximately a minute, PO Quinones and PO Sanchez approached § 87(2)(b)'s car and PO Quinones began issuing § 87(2)(b) a summons for double-parking. At that time, § 87(2)(b) came out and allegedly told PO Quinones he could not issue him a summons because his fiancée, § 87(2)(b) who was seated in the passenger seat, was in the car. PO Quinones replied, "Where does it say that?" § 87(2)(b) then told PO Quinones that he had family members who were police officers. PO Quinones replied that he also had family members who were officers. When § 87(2)(b) realized that PO Quinones was still writing him the summons, he then went back inside the barbershop. PO Quinones denied making any of the

statement alleged by § 87(2)(b) and denied using profanity at any point while interacting with § 87(2)(b)

PO Sanchez's testimony was consistent with PO Quinones' statement.

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: **9**

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date